

Private Manager Accounts

This form is to be completed each year by a private financial manager outlining a managed person’s finances for the past financial year.

Please complete this form to the best of your ability. If certain sections do not apply, simply write N/A or cross out. You can use a bookkeeper or accountant to assist you. The cost of this can be paid from the managed person’s estate.

Once completed, please submit the form via the following website link: www.nsw.gov.au/trustee-guardian/financial-management-forms or mail to NSW Trustee and Guardian, Locked Bag 5115, Parramatta, NSW 2124.

Accounting period	From	To
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Section A Personal information

Details of managed person

Customer reference number	Surname	Given name(s)

Your details

Surname	Given name (s)		
Phone	Email		
Address			
		Postcode	
What is the best way to contact you if we have a question about the accounts?	Phone ☐	Email ☐	Mail ☐
Let us know if we need to update the managed person’s address, your contact details, or contact details for any other private manager.			

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Section B Current estate

Detail financial information for the managed person's estate over the accounting period.

Real estate

Address		Ownership <i>Sole/joint tenant/ tenants in common</i>	Occupancy <i>Managed person/ tenant/vacant</i>	Current value \$
				\$
	Postcode			
				\$
	Postcode			
				\$
	Postcode			
Total				\$

Refundable Accommodation Deposit

Aged care facility name and address		Date entered facility	Amount paid \$	Current value \$
	Postcode			
Total			\$	

Bank accounts (including term deposits)

Name of financial institution	Ownership <i>Sole/joint</i>	BSB	Account number	Current value* \$
				\$
				\$
				\$
Total				\$

* Provide the managed person's share as value if ownership is joint.

Investments (including shares, managed funds, debts due to managed person)

Investment type	Name of financial institution	Ownership <i>Sole/joint</i>	Description	Number of units	Current value* \$
					\$
					\$
					\$
Total					\$

* Provide the managed person's share as value if ownership is joint.

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NSW Trustee and Guardian investments

Fund name	Account number	Current value
		\$
		\$
		\$
Total		\$

Superannuation

Name of institution	Description	Current value
		\$
		\$
		\$
Total		\$

Motor vehicle(s)

Make and model	Ownership <i>Sole/joint</i>	Registration number	Current value
			\$
			\$
			\$
Total			\$

Liabilities (including mortgages, loans, credit cards, overdraft facility)

Liability type	Owner of liability (financial institution)	Term	Current amount outstanding
			\$
			\$
			\$
			\$
			\$
			\$
			\$
			\$
Total			\$

Section C Income and expenditure

Record all funds that have been received or spent over the accounting period.

Income

Income	Current year
Investments (interest, dividends, managed funds, trust distributions)	\$
NDIS funding	\$
Pensions (Centrelink, Department of Veterans' Affairs, foreign)	\$
Rental income (investment property)	\$
Salary and wages	\$
Superannuation	\$
Other income (specify)	\$
Total	\$

Additional comments or explanation for income received.

Expenditure

Expenditure	Current value
Accommodation (mortgage, rent, fees)	\$
Debt repayments (credit cards, loans)	\$
Income tax	\$
Motor vehicle expenses (registration, insurance, maintenance)	\$
NSW Trustee and Guardian account checking fee	\$
NSW Trustee and Guardian administration fee	\$
Personal living expenses (groceries, entertainment, transport, medical)	\$
Professional services (accountants, legal, financial planning)	\$
Property expenses (rates, taxes, insurance, maintenance)	\$
Ongoing remuneration (if approved by Supreme Court and NSW Trustee and Guardian)	\$
Utilities (electricity, gas, water, phone)	\$
Other (such as gifts – prior approval required, specify other)	\$
Total	\$

Additional comments or explanation for expenditure.

Section D One off receipts and expenditure

One-off receipts

One-off receipts are estate funds received from a single event e.g., proceeds from the sale of real estate or other assets, a court award, settlement, or inheritance.

Type of receipt	Amount
Inheritance	\$
Court award	\$
Settlement	\$
Sale of real estate or another asset	\$
Other (specify)	\$
Total	\$

One-off expenditure

One-off expenditure includes expenses that occur from a single event e.g., purchase of real estate or motor vehicle, payment of accommodation bond, modification to real estate, claims for past gratuitous care, legal costs, and holidays.

Type of expenditure	Amount
Purchase of real estate	\$
Payment of accommodation bond	\$
Modification to real estate	\$
Claims for past gratuitous care	\$
Legal costs	\$
Holidays	\$
NSW Trustee and Guardian establishment fee	\$
One-off establishment remuneration	\$
Other (specify)	\$
Total	\$

Section E Private manager's declaration

Please tick to confirm that you agree with the following statements:

The information provided is correct and lists all income received, expenditure paid out and all assets and liabilities of the managed person during the accounting period.	☐
I have requested written approval from NSW Trustee and Guardian prior to making changes to the managed person's estate or understand that I am required to do so if, applicable.	☐
All expenses during the period have been made for the direct benefit of the managed person.	☐
I have not made a gift or loan from the managed person's estate without the prior written authority of NSW Trustee and Guardian.	☐
The managed person is receiving the correct pension entitlements and all necessary information has been disclosed to Centrelink, the Department of Veterans' Affairs, or any other relevant organisation.	☐

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I have reviewed the performance of the managed person's investments and I am satisfied that the current investments disclosed in the accounts meet the requirements of Section 14C of the <i>Trustee Act 1925</i> (see Appendix B).	☐
I have provided all the supporting documents required for the lodgement of accounts (list provided in Appendix A).	☐
I am aware that I am required to retain all documentation relating to the accounting of the estate for a period of six years and that NSW Trustee and Guardian is authorised to request these documents from me at any time under section 116 of the <i>NSW Trustee and Guardian Act 2009</i> (see Appendix B).	☐

Private manager's signature _____ Date _____
(Type name if completing electronically)

Appendix A Supporting documents

The following documents must be submitted with the accounts.

Mandatory documents	
Bank statements for the accounting period identified.	☐
Statements for dividends, annuities, superannuation.	☐
Liabilities – credit card, mortgage, personal or other loans and or liability (most recent monthly statement).	☐
Insurance policy for real estate.	☐

The following documents can be requested by NSW Trustee and Guardian if required.

Optional documents	
Receipts or statements for large income or expenses.	☐
Centrelink/Department of Veterans' Affairs payslip (these are issued to the customer on a fortnightly basis from the relevant department).	☐
Centrelink/Department of Veterans Affairs Income Statement (these can be requested from Centrelink or through the MyGov online).	☐
Notice of tax assessment (minimum two years old) from the Australian Taxation Office.	☐

Appendix B Legislative reference

A – Section 116 of the *NSW Trustee and Guardian Act 2009*

116 NSW Trustee may require information and documents to be provided

- (1) The NSW Trustee may, by notice in writing given to a person, order the person to furnish to the NSW Trustee such information or records (or both) as the NSW Trustee requires in connection with any matter relating to the responsibilities of the NSW Trustee when acting in a protective capacity.
- (2) Any such notice must specify the manner in which the information or records are required to be furnished and a reasonable time (not less than 14 days after the giving of the notice) by which the information or records are required to be furnished.

B – Section 14C of *Trustee Act 1925*

14C Matters to which trustee is to have regard when exercising power of investment

- (1) Without limiting the matters that a trustee may take into account when exercising a power of investment, a trustee must, so far as they are appropriate to the circumstances of the trust, if any, have regard to the following matters:
 - (a) the purposes of the trust and the needs and circumstances of the beneficiaries,
 - (b) the desirability of diversifying trust investments,
 - (c) the nature of, and the risk associated with, existing trust investments and other trust property,
 - (d) the need to maintain the real value of the capital or income of the trust,
 - (e) the risk of capital or income loss or depreciation,
 - (f) the potential for capital appreciation,
 - (g) the likely income return and the timing of income return,
 - (h) the length of the term of the proposed investment,
 - (i) the probable duration of the trust,
 - (j) the liquidity and marketability of the proposed investment during, and on the determination of, the term of the proposed investment,
 - (k) the aggregate value of the trust estate,
 - (l) the effect of the proposed investment in relation to the tax liability of the trust,
 - (m) the likelihood of inflation affecting the value of the proposed investment or other trust property,
 - (n) the costs (including commissions, fees, charges and duties payable) of making the proposed investment,
 - (o) the results of a review of existing trust investments in accordance with section 14A (4).
- (2) A trustee may, having regard to the size and nature of the trust, do either or both of the following:
 - (a) obtain and consider independent and impartial advice reasonably required for the investment of trust funds or the management of the investment from a person whom the trustee reasonably believes to be competent to give the advice,
 - (b) pay out of trust funds the reasonable costs of obtaining the advice.
- (3) A trustee is to comply with this section unless expressly forbidden by the instrument (if any) creating the trust.

NSW Trustee and Guardian collect, store and use personal and health information to inform decisions we make. To learn more visit www.nsw.gov.au/trustee-guardian/privacy.